

Court (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Here, the court cannot reconsider the instant motion because Plaintiff has failed to post a bond as previously ordered to do so and thus the CCP section 391.6 stays remains in effect depriving this court of authority to rule on the merits of any pending motion. Moreover, there are no new or different facts, circumstances or law, which would allow this court to change its prior ruling.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507250	DEAN VS KAISER FOUNDATION HEALTH PLAN, INC.	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: Matter is dismissed pursuant to CCP Section 391.4. Hearing taken off calendar as moot in light of dismissal.

On October 3, 2025, Plaintiffs Stephan Dean and Liza Dean, individually and d/b/a SureFile Filing Systems (collectively, “Plaintiffs”) filed the operative Complaint against Defendants Kaiser Foundation Health Plan, Inc. and Kaiser Foundation Hospitals (collectively, “Defendants”).

On January 15, 2026, Defendants filed a special motion to strike under CCP § 425.16. On January 21, 2026, Defendants filed a motion to declare Plaintiffs vexatious litigants under CCP § 391.

On March 19, 2026, the Court granted the vexatious litigant motion, declared each Plaintiff a vexatious litigant subject to a section 391.7 prefiling order, and ordered Plaintiffs to furnish \$50,000 in security to the Riverside Superior Court by April 1, 2026, or the case may be dismissed. (Minute Order dated March 19, 2026.) The Court expressly held that upon the filing of the vexatious litigant motion the entire litigation was stayed, and that the Court “need not address the merits of the anti-SLAPP motion unless and until ten (10) days after Plaintiffs post the security required by the Court’s order.” (*Id.*)

The Court thereafter continued the hearing on the anti-SLAPP motion to July 14, 2026, “to allow time to determine status of posting of security before court to decide merits on the instant motion.” (Court’s Minute Order dated April 1, 2026.)

On March 30, 2026, Plaintiffs filed a motion for reconsideration of the March 19, 2026 order, also set for hearing on July 14, 2026.

Anti SLAPP

As of July 13, 2026 the docket does not reflect that Plaintiffs have posted the \$50,000 security ordered on March 19, 2026. Defendants’ Opposition to the motion for reconsideration, filed May 15, 2026, affirmatively represents that “Plaintiffs have not posted the Court-ordered bond,” supported by the Declaration of Jack Burns, filed in support of that Opposition. (Burns Decl. ¶ 3.) The April 1, 2026 posting deadline has passed.

The pending motion for reconsideration does not toll the posting deadline. CCP § 391.4 provides that when security “is not furnished as ordered, the litigation shall be dismissed as to defendant for whose benefit it was ordered furnished.” (CCP § 391.4 [emphasis added].) The word “shall” is mandatory, and nothing in section 391.3, 391.4, or 391.6 tolls the posting deadline upon the filing of a motion for reconsideration.

To the contrary, section 391.6 stays “the entirety for the litigation” from the filing of the vexatious litigant motion until 10 days after security is furnished, and “does not carve out any exception for proceedings that may continue” other than dismissal under section 391.3(b). (*Hanna v. Little League Baseball* (2020) 53 Cal.App.5th 871, 875–76.) The stay applies to the anti-SLAPP motion itself. (*Id.*)

On the current record, the Court cannot reach the merits of the anti-SLAPP motion (or the motion for reconsideration) because no bond has been posted, (1) the section 391.6 stay remains in effect, depriving the Court of authority to rule on the merits of the anti-SLAPP motion, and (2) because the security ordered on March 19, 2026 was not furnished as ordered, dismissal of the action as to Defendants is mandatory under section 391.4.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2508833	MONTEREY PALMS OPERATING COMPANY, LP, A DELAWARE LIMITED PARTNERSHIP VS ARMSTRONG	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT OF MONTEREY PALMS OPERATING COMPANY, LP, A DELAWARE LIMITED PARTNERSHIP BY RUTH ARMSTRONG

Tentative Ruling: Overruled.

Defendant to file their answer to operative complaint within 20 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This case is about an unpaid bill for skilled nursing facility care. On November 7, 2025, Plaintiff Monterey Palms Operating Company, LP, dba Monterey Palms Health Care Center (“Plaintiff”) filed a Complaint against Defendant Ruth Armstrong (“Defendant”), asserting three causes of action: (1) breach of written contract; (2) common counts (open book account); and (3) quantum meruit.

Plaintiff alleges that on or about January 6, 2024, Defendant entered into a written “California Standard Admission Agreement for Skilled Nursing Facilities and Intermediate Care Facilities” (hereinafter, “Admission Agreement”), which was signed on her behalf by her son, Chris Armstrong, as her agent and “Resident’s Representative.” (Compl. ¶ 5.) Plaintiff rendered skilled nursing care and treatment to Defendant from on or about December 18, 2023, until June 3, 2025, and alleges it is owed \$207,310.80 for that care, which Defendant has failed to pay despite demand. (*Id.* at ¶¶ 6–7, 10.)

Defendant argues that all three causes of action (breach of written contract, open book account, and quantum meruit) fail because the Complaint contains only a conclusory allegation that her son, Chris Armstrong, signed the Admission Agreement as her “agent,” without pleading any facts establishing when, how, or under what circumstances she authorized him to act on her behalf. Defendant contends that under California law, family relationship alone does not create agency, that the burden is on Plaintiff to prove authority, and that without factual allegations of express authorization, implied authorization, ostensible authority, or ratification, the Complaint is legally insufficient. Defendant alternatively argues that the Complaint is uncertain under CCP § 430.10(f) because it fails to clearly establish the basis for imposing liability on her.

In opposition, Plaintiff argues that all three causes of action are adequately pled, noting that the Complaint does allege agency—specifically that “Chris Armstrong signed the Contract as Defendant Armstrong’s agent and as the ‘Resident’s Representative’” (Compl. ¶ 5)—and that